



July 16th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=fizBO1nRR1A
Publication Date	2018-07-16T17:43:38Z
Target Category	delaware_county

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Municipal Meeting Summary Report

Board: Delaware County Commissioners

Meeting Date: July 16, 2018

1. Pre-Meeting Hearings & Committee Work Sessions

(No statutory public hearing or committee work session was held prior to calling the regular meeting to order.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** [00:00:07](#) The regular meeting of the Delaware County Commissioners was called to order on Monday, July 16, 2018.
- **Attendance:**
 - **Members Present:** Mr. Regan, Mr. Henry, and Mr. King (Presiding officer/roll call indicates full board presence).
 - **Members Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** None explicitly recorded in the transcript.
 - **Approval of Minutes:** 00:01:20 The board approved the minutes from the July 2, 2018 regular meeting and the June 25, 2018 special meeting.
 - **Action & Vote Disposition:** Passed 3-0 on a roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes).
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4. Substantive Business & Board Action

00:00:48 Board Appointment: Purdue Workforce Development Initiative

- **Sponsor / Presenter:** Board of Commissioners.
- **Deliberation Summary:** The commissioners considered the appointment of Ted Baker to the Purdue Workforce Development Initiative board.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved on a roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes).

00:01:43 Presentation & Resolution: Daleville High School Boys Baseball Team

- **Sponsor / Presenter:** Delaware County Commissioners.
- **Deliberation Summary:** 00:02:04 The board read and presented an official resolution honoring the Daleville High School boys varsity baseball team for capturing their second state championship in three years (Class A single-elimination state tournament, defeating University High School Trailblazers 4-2 in extra innings). Recognition was given to Coach Terry Turner, his coaching staff, and the roster of players, noting individual honors including Ryan Hill making the All-State team.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Resolution honoring the baseball team approved on a roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes).

00:08:13 Ordinance No. 2018-09 (First/Second Reading): Delaware County Comprehensive Zoning Ordinance Amendment

- **Sponsor / Presenter:** Marta Moody, Executive Director of the Muncie-Delaware-Metropolitan Planning Commission / Jason Rawley of AR Engineering (representing the applicant).
- **Deliberation Summary:** 00:08:33 The board considered an ordinance to rezone approximately seven acres at the northwestern corner of State Road 67 and County Road 400 South from Agricultural-Residential (AR) to Variety Business (VB) for a proposed retail development (specifically discussed as a Dollar General/Family Dollar type store).

- Marta Moody reported that the Planning Commission held a public hearing on July 5, 2018, and returned an **unfavorable recommendation of 6-0 (with 3 abstentions)**.
- **00:09:46** The applicant's representative offered to reduce the rezoned footprint to the front ~3 acres (leaving the back as residential buffer) and promised to address on-site drainage and traffic access off 400 South (with no direct access to SR 67).
- Commissioners and local law enforcement raised serious safety concerns regarding high-speed traffic, semi-truck parking/maneuvering, and a history of injury and fatal accidents at the intersection.
- **Item-Specific Public Input:**
 - **00:19:14 Jamie Fryer** (6130 South County Road 294 West) spoke in opposition, detailing long-standing safety hazards, high-speed traffic, semi-truck obstruction, chronic flooding affecting neighboring properties, school bus turnaround conflicts, and the oversaturation of similar discount stores within a 3.5-mile radius. She characterized the request as "spot zoning" that violates the comprehensive plan.
 - **00:22:19 James Mohler** (5881 South Proctor Road) spoke in opposition, expressing concerns regarding worsened stormwater runoff flooding his farm ground and protecting the peaceful environment near a local cemetery where his wife is buried.
 - **00:32:19 Randy Belton** (6211 South County Road 294 West) spoke in opposition, corroborating severe property flooding, dangerous speeding, and near-miss accidents at the intersection.
- **Action & Vote Disposition: 00:36:08** A motion was made and seconded to **reject** the ordinance. Passed on a roll call vote (Ms. Regan: Yes [to reject], Mr. Henry: Yes [to reject], Mr. King: Yes [to reject]). Ordinance rejected.

00:36:48 Payment of Claims

- **Sponsor / Presenter:** County Administration / Auditor.
- **Deliberation Summary:** Presentation of county claims for approval.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved payment of claims totaling **\$1,454,699.13** on a roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes).

5. Open Public Comment / Citizen Forum

- **00:37:08 Commissioner Announcement / Community Invitation:** A commissioner invited the public to attend the Delaware County Fair running through Sunday night, highlighting ongoing 4-H activities, grandstand events, and the upcoming 4-H livestock auction starting Wednesday at 2:00 PM. Programs were made available on the back table.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** None beyond the Delaware County Fair announcement.
 - **Adjournment:** 00:37:45 A motion to recess/adjourn was made, seconded, and approved. Meeting adjourned.
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